



Diseases of Animals Act 1975

1975 CHAPTER 40

An Act to make further provision for preventing the introduction or spreading, through imports into Great Britain, of diseases of animals and poultry, and for purposes connected therewith. [3rd July 1975]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) For section 24 of the Diseases of Animals Act 1950 (in this Act referred to as “the principal Act”) there shall be substituted the following section:—

“Orders prohibiting or regulating import of animals etc.

24.—(1) The Minister and the Secretary of State acting jointly may by order make such provision as they think fit for the purpose of preventing the introduction or spreading of disease into or within Great Britain through the importation of—

- (a) animals and carcasses,
- (b) poultry, carcasses of poultry and eggs, and
- (c) other things, whether animate or inanimate, by or by means of which it appears to them that any disease might be carried or transmitted.

(2) Without prejudice to the generality of the powers conferred by this section and by section 1 of this Act, for the purpose specified in subsection (1) of this section an order under this section—

- (a) may prohibit or regulate the importation of any of the things specified in paragraphs (a) to (c) of subsection (1) above;

Extended power to prevent introduction and spread of diseases of animals and poultry.
1950 c. 36.

- (b) may make provision not only with respect to imports (including vessels, boats, hovercraft, aircraft and vehicles of other descriptions) but also with respect to persons, animals, poultry and other things which have been or may have been in contact with imports ;
- (c) may make different provision in relation to different cases ; and
- (d) may make provision with respect to any of the matters specified in Schedule 1 to this Act.

(3) An order under this section may provide that, in such circumstances as may be specified in the order, animals or poultry which—

- (a) are brought into Great Britain in such circumstances that they are not imported, within the meaning of this Act, and
- (b) whilst outside Great Britain have been or may have been in contact with any of the things specified in paragraphs (a) to (c) of subsection (1) above,

shall be deemed for the purposes of this section and Schedule 1 to this Act to be imported at the time when they are brought into Great Britain.

(4) In this section and in Schedule 1 to this Act the expression “ animal ” includes —

- (a) any kind of mammal, except man,
- (b) any kind of four-footed beast which is not a mammal, and
- (c) fish, reptiles, crustaceans and other cold-blooded creatures not falling within paragraph (a) or paragraph (b) above,

and the expression “ disease ” is not restricted by the definition in this Act.

(5) Every order made under this section shall be laid before both Houses of Parliament after being made and, without prejudice to the construction of references to the Minister in any provision of this Act not contained in this section, an order under this section shall be treated for the purposes of any such provision as an order of the Minister.

(6) Paragraphs (a) and (b) of section 79(2) of the Customs and Excise Act 1952 (time of importation of goods brought by sea and air) shall have effect for

the purposes of this section and Schedule 1 to this Act as they have effect for the purposes of that Act."

(2) For Schedule 1 to the principal Act there shall be substituted the provisions set out in Schedule 1 to this Act.

2.—(1) In section 73 of the principal Act (general powers of inspectors) after subsection (4) there shall be inserted the following subsections:—

" (4A) For the purpose of ascertaining whether the provisions of any order under section 24 of this Act or the conditions of any licence issued in accordance with any such order are being complied with, an inspector may at any time enter—

- (a) any vessel, boat, hovercraft, aircraft or vehicle of any other description which is for the time being within the limits of a port, within the meaning of the Customs and Excise Act 1952, or at a customs airport, within the meaning of that Act; or
- (b) any vessel, boat, hovercraft or aircraft which does not fall within paragraph (a) above but which he has reasonable grounds for supposing has recently been brought into Great Britain.

(4B) Without prejudice to subsection (4A) above, an inspector may at any time enter—

- (a) any land, building or other place, or
- (b) any vessel, boat, hovercraft, aircraft or vehicle of any other description,

on or in which he has reasonable grounds for supposing that there is being or has been kept any animal, poultry or other thing which has been imported and the importation of which is for the time being prohibited or regulated by an order under section 24 of this Act; and in this subsection ' animal ' and ' imported ' have the same meaning as in that section."

(2) In section 78(1)(vi) of the principal Act (offence of refusing admission, etc. to an inspector entitled to exercise powers of entry) for the words " vessel, pen, vehicle, or boat " there shall be substituted the words " pen, vessel, boat, hovercraft, aircraft or vehicle of any other description ".

3. Without prejudice to section 80 of the principal Act (summary proceedings) if an order made under section 24 of the principal Act, as that section has effect by virtue of section 1 of this Act, declares that this section applies to an offence which consists of—

- (a) a contravention of, or failure to comply with, any provision of that order, or

Prosecution on indictment of certain offences connected with importation.

(b) a failure to observe any conditions to which a licence issued in accordance with that order is subject,

an offence to which this section is so declared to apply may be prosecuted on indictment; and a person convicted on indictment of such an offence shall be liable to imprisonment for a term not exceeding 12 months or to a fine or to both.

Transitional
provisions
and repeals.

4.—(1) Neither the provisions of section 1 above nor the repeal by this Act of any provision of the principal Act shall affect the continued operation of any order made, or having effect as if made, under any provision of sections 24 to 33 of that Act before the day appointed for the coming into operation of section 1 of this Act; but every such order may be revoked or varied on or after the day so appointed as if it had been made under section 24 of that Act, as that section has effect by virtue of section 1 above.

(2) In the case of an order made, or having effect as if made, partly under any provision of sections 24 to 33 of the principal Act and partly under any other enactment (whether or not contained in that Act), subsection (1) above shall have effect to the extent that the order is made or has effect as if made under any of those sections.

(3) The enactments specified in Schedule 2 to this Act are hereby repealed to the extent specified in the third column of that Schedule.

Short title,
commencement
and extent.

5.—(1) This Act may be cited as the Diseases of Animals Act 1975.

(2) This Act shall come into operation on such day as the Minister and the Secretary of State may by order made by statutory instrument jointly appoint, and different days may be so appointed for different provisions and for different purposes.

(3) This Act does not extend to Northern Ireland.

SCHEDULES

SCHEDULE 1

Section 1.

PROVISIONS TO BE SUBSTITUTED FOR SCHEDULE 1 TO PRINCIPAL ACT

"SCHEDULE 1

SPECIFIC MATTERS WITH RESPECT TO WHICH PROVISION MAY BE MADE IN ORDERS UNDER SECTION 24

1. The conditions to be observed before, during and after importation.
2. Exemptions from provisions of the order by means of licences, whether general or specific and whether conditional or unconditional, issued in accordance with the order.
3. The prohibition of the importation of animals, poultry or other things save at such ports, airports and other places of entry as may be designated.
4. Landing and quarantine of animals, poultry and other things.
5. Seizure, detention and treatment of animals, poultry and other things.
6. Slaughter of animals and poultry and destruction of other things.
7. Cleansing and disinfection.
8. Marking, testing and use of animals, poultry and other things.
9. Movement of persons and of animals, poultry and other things.
10. Recovery of costs.
11. Inspection.
12. Entitlement to compensation and the determination, subject to the approval of the Treasury, of the amount of compensation payable in any case."

Section 4.

SCHEDULE 2**ENACTMENTS REPEALED**

Chapter	Short title	Extent of repeal
39 & 40 Vict. c. 36.	The Customs Consolidation Act 1876.	In section 42, the entry in the Table beginning "Infected cattle".
14 Geo. 6. c. 36.	The Diseases of Animals Act 1950.	Section 19(6). Sections 25 to 32. Section 33(1). Section 35. Section 49. In section 85(7) the words "section twenty-seven". Schedule 2.
2 & 3 Eliz. 2. c. 39.	The Agriculture (Miscellaneous Provisions) Act 1954.	In section 11(3) the words "and in the second Schedule to this Act". In Schedule 2, paragraph 2.
1970 c. 40. 1972 c. 62.	The Agriculture Act 1970. The Agriculture (Miscellaneous Provisions) Act 1972.	Section 105(1). Section 8(6).
1972 c. 68.	The European Communities Act 1972.	In Schedule 4, in paragraph 7, sub-paragraphs (2), (4) and (5).